

THE COMPOUND FAILURE

Environmental, Educational, and Economic Dismantling of Disability Supports in Alberta

Prepared by the Alberta Disability System Breakdown Campaign

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EXECUTIVE SUMMARY

This brief documents a compound pattern in the Government of Alberta's relationship with its disabled residents. On July 1, 2026, the Alberta Disability Assistance Program (ADAP) replaces the Assured Income for the Severely Handicapped (AISH) program — Alberta's principal disability income program since 1979 — affecting 79,290 currently-named recipients and a substantially larger affected population that includes Family Support for Children with Disabilities (FSCD) families, Persons with Developmental Disabilities (PDD) recipients, and Albertans waiting for both. The brief's principal finding is that this transition is not a discrete program reform. It is the third stage of a compound failure in which the same provincial government has produced and sustained the environmental conditions associated in the published literature with elevated population disability rates; permitted the contraction of the educational and developmental-support systems designed to mitigate those conditions; and now restructures the income-support architecture for the adults whose lives are shaped by the first two stages.

Pillar I documents Alberta-specific exposure profiles for environmental contributors associated in the published epidemiological literature with elevated rates of disability and disability-related conditions — including perfluoroalkyl substances (PFAS) in drinking water, pesticide and pesticide-residue exposure, legacy contamination including asbestos and lead, and consumer-waste leachate. The disproportionate exposure of Indigenous Albertans to all of the above is documented in the campaign's separate 195-page Indigenous Disability evidentiary record. Pillar I further documents the simultaneous contraction of the provincial regulatory architecture intended to address these exposures, including the February 26, 2026 funding termination of the Alberta Water Council and the simultaneous termination of the Clean Air Strategic Alliance. The pillar does not assert individual causation; it documents population-level associations and the regulatory record that produced and sustained them.

Pillar II documents the operational state of the educational and developmental-support systems Alberta has assumed, by statute and ministerial order, the obligation to provide. The FSCD program operates on a documented three-year average wait, with 85% of families at the 13.5-month mark still without an assigned caseworker and caseloads as high as 400 families per worker against a recommended maximum of 100. The PDD program has not had its waitlist publicly reported in three years. Inclusive education in K-12 operates against a documented implementation gap

producing complaints proceeding through Alberta Teaching Profession Commission channels. The pillar establishes as a load-bearing finding the documented data opacity surrounding all three programs — that is, the documented decision of the provincial government to cease publishing the data that would permit external assessment of program performance.

Pillar III documents the AISH-to-ADAP transition itself. Effective July 1, 2026 under Bill 12 (passed December 9, 2025), the transition reduces the base monthly benefit by \$200 (after a transition-benefit period ending December 31, 2027), reduces the exempt employment income from \$1,072 to \$700 per month, removes legislated cost-of-living indexing, and eliminates the independent Citizens Appeal Panel that had overturned or varied approximately 37% of appealed AISH decisions across 19 documented quarters. The transition operates against an Alberta-only dollar-for-dollar clawback of the federal Canada Disability Benefit (approximately \$190 million annually captured from federal anti-poverty payments). The Government's published documentation has not, as of the date of this brief, established the operational specifications of the program 71 days before its launch.

Section V identifies the justiciable questions the documented record raises under the Canadian Charter of Rights and Freedoms (sections 7 and 15), Canadian administrative law (procedural fairness under *Baker v. Canada* and the conflict-of-interest principles in the natural-justice jurisprudence), the federal-provincial framework (the *Canada Disability Benefit Act*, SC 2024 c 17, and section 36 of the *Constitution Act, 1982*), and the United Nations Convention on the Rights of Persons with Disabilities (Articles 12, 13, 19, and 28). The section frames each question as justiciable rather than adjudicated, identifies the section 1 burden the Crown would bear on any properly developed record, and addresses the available remedial framework under section 24 of the Charter and section 52 of the *Constitution Act, 1982*.

Section VI synthesizes the documented findings as a single evidentiary record. The brief is not a litigation pleading. It is a foundation document — every claim sourced to a primary document, every legal citation verified, every constitutional question framed as raising the question rather than asserting the answer. It is offered to legal practitioners considering whether any of the questions raised are suitable for development; to legislators in both the Alberta Legislature and the Parliament of Canada; to the federal Standing Committee on Human Resources, Skills and Social Development and the Status of Persons with Disabilities; to the United Nations Special Rapporteur on the Rights of Persons with Disabilities; to journalists; and to the affected population, whose individual personal impact submissions, where filed, carry the lived weight no document of this register can convey. The brief documents what the documented record establishes. The response to that record is reserved to the constitutional, legislative, and judicial architecture to which the brief is addressed.

I. INTRODUCTION

a. A Note on This Document, Its Companions, and Its Distribution

This document is the primary public-facing brief of the Alberta Disability System Breakdown Campaign. It is written for a legal and academic audience — constitutional law clinics, advocacy lawyers, policy analysts, legislators, journalists, and the organizations that hold them to account — and is intended to be useful to any reader, professional or otherwise, who wishes to understand the pattern this document describes.

This brief is more substantial when it is accompanied, in the formal government tier, by named personal impact submissions filed by members of the affected population in their individual capacities. Whether to file such a submission is the decision of each individual, and this brief does not presume upon that decision. Where personal impact submissions have been filed, they provide the present-tense, primary-source human evidence that this brief aggregates and analyzes — accounts written by parents of disabled children, by adults receiving AISH, by recipients moving toward the ADAP transition, and by others directly affected by the systems described in the following pages. Such submissions are typically filed with the Premier's Office of Alberta, the Minister of Seniors, Community and Social Services, the Minister of Education, the Minister of Children and Family Services, the offices of the relevant provincial Members of the Legislative Assembly, the offices of the relevant federal Members of Parliament, the federal Minister responsible for the Canada Disability Benefit, the Standing Committee on Human Resources, Skills and Social Development and the Status of Persons with Disabilities of the House of Commons, and the United Nations Special Rapporteur on the Rights of Persons with Disabilities. Personal impact submissions contain identifying information about specific individuals, families, schools, and agencies. For that reason, and consistent with the campaign's long-standing distribution canon, those submissions do not circulate publicly and are not available on request. This brief draws on the patterns such submissions describe but does not reproduce them.

Parallel to the disability-supports file examined here, formal complaints are also proceeding through Alberta's professional regulatory channels concerning failures of school-based accommodation for children with documented disability-related support needs. The Alberta Teaching Profession Commission is currently processing complaints arising from these failures, including at least one filed by a member of the affected population whose work informs the present brief. Specific complaint details are confidential under the Commission's process and are not reproduced in this document. Inclusion Alberta and other parent-led advocacy organizations have publicly documented patterns of inclusive-education accommodation failure consistent with the types of filings the Commission is presently considering; those published findings are cited where relevant in Pillar II of this brief.

This brief is distributed without restriction. It is available through the Alberta Disability System Breakdown Campaign's public channels, including its Facebook group and its associated application, and may be forwarded, quoted, cited, translated, reformatted, or reproduced in whole or in part by any person or organization that finds it useful. The campaign's long-standing position

is that information of public consequence about government conduct belongs in public hands. That position applies to this document.

The contents of this brief, however, are not casually drafted. Every factual claim in the following pages is sourced to a primary document, a peer-reviewed publication, a government record, or a named advocacy organization's published research. Every legal citation has been verified against the published decision. Where a claim rests on an association rather than a demonstrated individual-level causal relationship, the brief says so. Where a legal question is live but not yet settled by a court, the brief frames it as a justiciable question rather than a settled violation. The Alberta Disability System Breakdown Campaign's documentary corpus is built on primary-source discipline, and this document is held to that same standard.

b. How to Use This Document

This document is structured for use by readers of multiple backgrounds. The orientation below is offered to help each reader engage with the brief in the manner most useful to that reader's role.

For lawyers, constitutional law clinics, policy researchers, and journalists: the executive summary above provides the brief in compressed form. For substantive engagement, read Section I for context and the three pillars (Pillar I — Environmental Input; Pillar II — Mitigation Collapse; Pillar III — Economic Output) for the documented evidentiary record. Section V presents the constitutional and administrative-law analysis, with case citations in standard form. Section VI synthesizes the documented findings and identifies the justiciable questions reserved to the courts. If any of the questions raised align with work you do, the campaign would welcome contact at the address below.

For legislators, ministers, and ministerial staff: every claim in this brief is sourced to a primary document. The campaign asks that you read the evidence in each pillar before forming a position on the AISH-to-ADAP transition, and that the questions raised in Section V be treated as the constitutional and administrative-law questions they are. The brief identifies what the documented record establishes; the response to that record is, as Section VI articulates, reserved to the architecture you operate within.

For members of the affected population — AISH or ADAP recipients, FSCD or PDD families, Albertans with disabilities, family members and caregivers: this brief is the legal-academic version of the case the documented record establishes. Your voice in this conversation matters at the same level as everything in this document. Personal impact submissions filed by individuals, in their individual capacities, carry weight that aggregated analysis cannot. The campaign maintains a fillable Personal Impact Statement template, available as a separate community document, that walks you through what to write and where to file it. Whether to file one is your decision; the campaign supports either choice.

For every other reader: distribution is unrestricted. Share this document with whoever in your life might find it useful. The brief was written for it to reach the people who can use it.

Companion resources, including the Personal Impact Statement template, the campaign's evidentiary report series, the plain-language guide, and the campaign's other published materials, are available through the Alberta Disability System Breakdown Campaign's app and Facebook group, and through the campaign email at AlbertaDisabilityBreakdown@outlook.com.

c. The July 1, 2026 Threshold

On July 1, 2026, the Alberta Disability Assistance Program (ADAP) will replace the Assured Income for the Severely Handicapped (AISH) program as Alberta's principal income-support program for adults with severe, permanent disabilities. The transition affects the 79,290 Albertans currently receiving AISH benefits as of September 2025, according to the Government of Alberta's open caseload data. It restructures eligibility, reduces the base monthly benefit from \$1,940 to \$1,740, reduces the single-recipient fully-exempt employment income from \$1,072 per month to \$700 per month, removes the previously legislated annual cost-of-living adjustment, and — through Bill 12, passed December 9, 2025 — eliminates the independent Citizens Appeal Panel that provided recourse for recipients contesting eligibility decisions under the prior program.

These changes are public, documented in the Government of Alberta's own publications and in the text of Bill 12 as passed. They do not require interpretation to establish.

What this brief examines is the context in which those changes are being made. The Alberta Disability System Breakdown Campaign's position, developed across the campaign's fourteen-part evidentiary report series and restated here in legal-brief form for an audience that has not yet encountered the underlying material, is that the AISH-to-ADAP transition is not a discrete program reform. It is the final stage of a compound pattern in which the same government permits the environmental inputs that contribute to documented population-level increases in neurodevelopmental and other disabilities; dismantles or starves the educational and early-intervention mitigation systems that were designed to respond to those increases; and then reduces the adult income and support program that receives the population that has passed through the first two stations.

Each of these three stages is the subject of one of the three pillars that follow. Each pillar is grounded in government documents, peer-reviewed research, the published findings of Alberta's own Auditor General, the published findings of established advocacy organizations including Inclusion Alberta, and the Government of Alberta's own statements on the public record.

d. The Population Affected

The 79,290 Albertans currently receiving AISH are not a homogeneous group. Drawing from Alberta Assisted Living and Social Services open data as of September 2025: 32,901 (41.5%) have a primary condition of physical disability; 23,940 (30.2%) have a primary condition of mental illness; 22,419 (28.3%) have a primary condition of cognitive disorder. Of the total, 68,223 (86%) are single individuals and 5,426 (6.8%) are single parents. 66,263 (83.6%) report zero employment income.

Beyond the AISH caseload, the affected population includes the approximately 20,000 Alberta families receiving Family Support for Children with Disabilities (FSCD) supports and the adults receiving Persons with Developmental Disabilities (PDD) supports. It also includes, critically, the families and individuals who have applied to FSCD or PDD and are waiting — a population whose size the Government of Alberta has not publicly disclosed since approximately 2022.

The affected population is therefore larger than the AISH caseload and cannot be precisely enumerated, because a material portion of it is invisible in the government's current public reporting. That invisibility is itself a finding of this brief and is examined in Pillar II.

e. The Compound-Failure Thesis

The Government of Alberta's environmental, educational, and disability-supports policies, considered together, create a documented pattern in which Alberta children exposed to substances and conditions the province permits, or whose federal contamination on Alberta soil the province has declined to act on, and who are then denied the early-intervention and educational mitigation supports the province has committed under its own legislation and ministerial orders to provide, arrive in adulthood — under the ADAP transition — to find the endpoint adult-income supports reduced, clawed back against a federal benefit every other province allows recipients to retain, and stripped of the independent appeal mechanism that previously existed under AISH.

This pattern is compound rather than cumulative: each stage does not merely add to the harm of the previous stage but makes the consequences of the previous stage harder to mitigate. A child who did not receive timely FSCD support during a critical developmental window cannot recover that window through adult ADAP benefits. An adult whose access to inclusive education was inadequate cannot reconstruct that education once AISH is replaced. The absence of appeal rights under ADAP renders contestable what was, under AISH, contestable through an independent panel. Each stage closes doors the previous stage needed open.

This brief is not a claim that any individual Alberta resident's disability was caused by any specific government policy. The scientific discipline required to maintain the distinction between population-level association and individual-level causation is observed throughout Pillar I, and is essential to the credibility of the rest of the document. What this brief argues is narrower and more defensible: that the Government of Alberta has assumed, through legislation and policy, statutory obligations in each of three domains — environmental protection, educational inclusion, and disability income support — and that the current exercise of those obligations, considered together, raises substantial questions under the Canadian Charter of Rights and Freedoms and Canadian administrative law that courts, legislators, and the public are entitled to examine.

f. The Life-Course Frame

The three pillars of this brief are doctrinally distinct. They correspond to three different categories of government authority and three different bodies of law. They are, however, encountered by actual Albertans across a single life course, and the brief's evidentiary weight depends on the reader keeping that in view.

Each of the pillars that follows concludes with a passage tracing the pillar's subject across four stations of a human life: prenatal, early childhood, school-age, and adult. The purpose of this recurring structure is not rhetorical. It is to show that the evidence the brief assembles does not describe three separate problems that happen to be occurring in the same province. It describes a single sequence encountered by the same people, in the same order, at the same approximate ages.

Pillar I's life-course passage traces how environmental inputs documented in Alberta enter a human life before birth and accumulate across decades. Pillar II's traces where the province's mitigation systems were designed to intervene and documents where and why those systems are now failing to intervene. Pillar III's traces what the adult endpoint looks like for a person who has passed through the previous two stations under the program about to take effect on July 1, 2026.

g. Document Structure and Audience

The brief proceeds in six sections. Pillar I examines the environmental input: Alberta-specific contamination data, peer-reviewed developmental associations, and the regulatory gap at the federal and provincial levels. Pillar II examines the mitigation collapse: FSCD, PDD, inclusive education, and the broader pattern of data suppression and stated policy intent. Pillar III examines the economic output: the AISH-to-ADAP transition, the Canada Disability Benefit clawback, Bill 12, and the reassessment of the already-assessed. Section V presents the constitutional and administrative-law analysis, drawing on *Eldridge v. British Columbia (Attorney General)*, [1997] 3 SCR 624, on substantive equality for persons with disabilities; *Withler v. Canada (Attorney General)*, 2011 SCC 12, on the contemporary section 15 framework; *Nova Scotia (Workers' Compensation Board) v. Martin*, 2003 SCC 54, on disability-subgroup distinctions within benefits regimes; *Baker v. Canada (Minister of Citizenship and Immigration)*, [1999] 2 SCR 817, on the duty of procedural fairness; *Chaoulli v. Quebec (Attorney General)*, 2005 SCC 35, on state action threatening security of the person; *Gosselin v. Quebec (Attorney General)*, 2002 SCC 84, on the unresolved economic-rights dimension of section 7; and the section 1 framework articulated in *R v. Oakes*, [1986] 1 SCR 103. Section VI synthesizes the documented findings and the legal analysis as a single evidentiary and legal record before the July 1, 2026 inflection point.

The intended primary audience of the brief is legal: constitutional law clinics, advocacy lawyers considering whether any of the questions the brief raises are suitable for litigation, and academic legal researchers working on Charter, administrative law, and disability-rights questions in Canada. The intended secondary audience is every other reader who finds the material useful, including legislators, journalists, policy analysts, disability advocacy organizations, members of the affected population, and their families. The brief has been written with the assumption that some of its readers will have extensive background in Canadian constitutional law and some will have none, and it has tried, where possible, to make each section accessible to the latter without diluting its usefulness to the former.

The brief does not ask the reader to accept the compound-failure thesis on the campaign's say-so. It asks the reader to weigh the evidence in each of the three pillars on its own merits, to consider the legal and administrative-law questions raised in Section V, and to draw their own conclusion about

what those questions collectively require of the Government of Alberta and, where relevant, the Government of Canada.